

to be treated as a true and real copy of the judgment actually passed by this Court. Moreover, such a copy has neither been made *per se* admissible in a court of law as evidence of what has been decided therein through permission granted by the Lahore High Court Rules and Orders nor by any notification issued by this Court in this regard rather the said copies are uploaded subject to all just and legal exceptions and not claimed to be authentic and true copies of the orders actually passed by this Court and free from errors or omissions.

4. Although Qanun-e-Shahadat Order, 1984, and certain other laws permit production of certified copies with a presumption that such certified copies are genuine yet such presumption of genuineness and correctness is not *per se* applicable to an unsigned copy of an order or judgment of this Court even if it is stated to be downloaded from the official website of this Court. For the purpose of clarity, reference may be made to Section 12 of The Electronic Transactions Ordinance, 2002, (**‘Ordinance’**) which is reproduced below.

“12. Certified copies:-- Where any law requires or permits the production of certified copies of any records, such requirement or permission shall extend to printouts or other forms of display of electronic documents where, in addition to fulfillment of the requirements as may be specified in such law relating to certification, it is verified in the manner laid down by the appropriate authority.”

5. Section 12 of Ordinance, although makes an electronically generated printout of documents admissible as evidence as a true copy of the original document/order yet the same has been made admissible subject to the condition that the print out or other form of electronic documents in addition to fulfillment of requirements specified in applicable law

are also verified in the manner that may be laid down by the appropriate authority. Hence, the presumption of authenticity provided under Section 12 *ibid* attached to printouts or other forms of electronic documents etc., would be applicable to copies of judgments of this Court only in cases where the same are verified in the manner that may be laid down by the appropriate authority, which is High Court in this case in view of Section 2(e)(iv) of the Ordinance, whereas the High Court has not declared such copies permissible to be produced as authentic copies of the original judgment or order or its substitute.

6. Moreover, the afore-referred copy is an unsigned copy downloaded by the petitioner himself, statedly from the official website, without any involvement of and authentication by the office of this Court. Such a copy could be allowed to be placed on the record where the High Court would have permitted the same or made the same as admissible. For clarity reference in this behalf may be made to a notification issued by the High Court of Orissa in our neighbouring country dated 25th March, 2020, wherein it was mentioned that such copies may be treated at par with the certified copies for a limited period of time during the pandemic of COVID-19 subject to the condition mentioned therein which notification is reproduced below:

“ORISSA HIGH COURT: CUTTACK

No.: 4587

dated 25th March, 2020

NOTICE

In continuation of the previous decisions to counter the threat of COVID-19, Hon'ble Court have been pleased to decide that concerned lawyers and litigants may access the copies of orders and judgments passed by the Hon'ble Court in relevant cases, as available in the Court's official website and

utilize the same in the prescribed manner as and when necessary and that such soft copies or print out thereof shall be treated at par with certified copies by the concerned authority before whom such soft copy or print out thereof is filed, after ensuring its veracity from the Court's website. If necessary, the concerned authority before whom a soft copy of the Hon'ble Courts judgment or order (or its print out) is filed, may seek clarification (through official email only) as to the veracity of such copy by stating reasons as to why such veracity could not be verified from Court's website. Such clarification may be sought from the Deputy Registrar (Judicial) by writing to his email ID at drj.od-hc@gov.in.

This arrangement shall remain in force till 15.04.2020.

By the order of the Court

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Registrar General "

As no such notification has been issued by this Court, hence a copy claimed to be downloaded from official website of this Court cannot be treated as an equivalent or at par with the certified copy.

7. Needless to mention that Section 3 of the Ordinance, although makes a document admissible if it is in electronic form and has not been attested by any witness, yet the same does not mean that an unsigned copy of electronically generated printout of document is *per se* admissible as a valid document rather as per Section 5, the requirement under any law for any document, record, information, communication or transaction to be presented or retained in its original form would only be satisfied if there exists a reasonable assurance as to the integrity thereof from the time when it was first generated in its final form and that too through proper authorization of relevant authority in view of Section 12 thereof. Besides, Section 16 of the Ordinance specifically mentions that nothing contained in the Ordinance

shall confer a right upon any person that any appropriate authority should accept, issue, create, retain, preserve any document in electronic form or effect monetary transaction in electronic form.

8. As far as the matter relating to an unsigned copy of the judgment published in a law journal is concerned, needless to mention that law journals are published with the permission of the concerned Government and that too supported by approval by the courts. In this regard, reference may be made to letter No. 7461-Genl./IIC-44 dated 13th November, 1949, mentioned on journals published by PLD Publishers referring to approval by High Court of judicature at Lahore for publishing said journals. Besides the said publication is subject to disclaimer that due care and caution has been taken to avoid any mistake or omission while editing, printing or publishing the judgments, etc., and the editors, printers or publishers shall not be liable in any manner for any loss or damage caused to the readers or any other concerned persons, from which it is clear that there is a possibility that the judgments printed in a law journal may not be an exact copy of what had been actually decided to be treated at par with the certified copies of the original judgment or order. Copies of judgments reported in law journals are sometimes allowed to be placed on the record as the same can easily be verified from the law journal itself, which is easily available wherein due care and caution has been taken to maintain integrity of the said judgment, however, such permission to place on record does not have an absolute presumption attached to it regarding integrity of the judgment being intact. Needless to mention that the official website of the High Court does not mention that due care and caution has been taken to ensure that the

judgment or order uploaded on its website is free from all errors and omissions and is an exact copy of what has been decided by the Court. Besides a downloaded copy does not have any mark available on it to conclude with surety that it has been actually downloaded from the official website of this Court and its integrity is still intact. Another aspect of the matter is the purpose for which a downloaded copy is to be placed on the record. If the said copy is the copy of a judgment or order of a Single Judge, which is impugned before another Bench of High Court, such as a Division Bench in case of an ICA or RFA, such copy is not permissible to be placed on the record as a substitute of certified copy of the impugned order. However, when the said copy is placed on the record as an annexure only for purpose of reference or its persuasive value as a precedent, the situation may be a little different and to be treated on case-to-case basis by the concerned court after verification of its integrity. Needless to mention that where integrity is not verified by the concerned authority, such copy would not be allowed to be used as substitute of original order, therefore, for the reason of having not been verified in the manner prescribed by High Court, which is the appropriate authority in the matter, Section 12 of the Ordinance is not applicable to the downloaded copy to treat the same at par with a certified and authentic copy.

9. In view of the afore-mentioned reasoning, the electronically generated/downloaded copy of judgment or order uploaded on official website of the Court cannot be allowed to be made part of the judicial record in an ordinary course of action, however, if such copies are attached with the file, the office is required to raise an objection against the same being made part of the record and where such an

objection is raised and placed before the Court for decision, the Court before which the same is placed may in its discretion allow or disallow its retention on the record on case to case basis. Moreover, if such copies are produced in court at the time of arguments, it is for the concerned court to consider the relevance and admissibility of the same.

10. In the present case, the said copy has not been placed on the record as an impugned order rather the same has been placed on the record for reference only. The said unattested and unsigned copy of the judgment available on the file as annexure-L comprises of 23 pages having 41 paragraphs and it is not possible for this Court while hearing the objection case to determine whether the said copy is an exact copy of judgment passed by this Court and is free from errors or omissions to allow the same to be retained on the file by treating the same as at par with an authentic document.

11. In view of the above, office objection is **sustained**.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan

APPROVED FOR REPORTING